

25CHCV03178 25CHCV03178

County: los-angeles

Division: Civil Law and Motion

Department: F46

Hearing date: 2026-09-10

Source URL: https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=CHA%2CF46%2C09%2F10%2F2026

Source SHA-256: ad5571e23933c8eea9c5999e9913817976ae3aee25384f2193d8d0366b6efc48

Case Number: 25CHCV03178 Hearing Date: September 10, 2026 Dept: F46

Dept. F-46

Hearing Date: September 10, 2026

Case Number: 25CHCV03178

MOTION TO COMPEL

DEPOSITION AND PRODUCTION OF DOCUMENTS

Motion filed on July 10, 2026.

MOVING PARTY: Best Buy Stores, L.P. (Defendant), erroneously
sued as Best Buy Co., Inc.

RESPONDING PARTY: Bryan Cioffi (Plaintiff)

NOTICE: OK.

RELIEF REQUESTED: Defendant seeks to compel Plaintiff's
deposition via Zoom and production of the items identified in the deposition
notice. Defendant also requests \$1,893 in monetary sanctions against Plaintiff.

RULING: Granted in part. Sanctions awarded in the reduced
amount of \$530.

BACKGROUND

On September 5, 2025, Plaintiff filed the Complaint alleging

premises liability and general negligence. (Real Decl., Ex. A.) On July 10, 2026, Defendant filed this motion with the supporting declaration of Joseph H. Real and Exhibits A through I. No timely opposition was filed.

DISCUSSION

Deposition

A party may move to compel attendance and testimony when a deponent fails to appear or proceed after service of a deposition notice without having served a valid objection under section 2025.410. (Code Civ. Proc., § 2025.450, subd. (a).) The motion must include a meet-and-confer declaration or, where the deponent fails to attend, a declaration showing inquiry about the nonappearance. (Id., subd. (b)(2).)

Here, Defendant first served a deposition notice on January 30, 2026, setting Plaintiff's deposition for February 25, 2026. (Real Decl., ¶ 3.) On February 24, 2026, Plaintiff's counsel advised that Plaintiff could not take the day off and offered April 8 and April 15 as alternative dates. (Id., ¶ 4.) Defendant then served a second deposition notice setting the deposition by Zoom for April 8, 2026. (Id., ¶ 5.) On April 1, 2026, Plaintiff's counsel requested another continuance because of a scheduling conflict and offered May 6, 7, 13, and 14. (Id., ¶ 6.) Defendant served a continued deposition notice on April 2, 2026, setting the deposition for May 14, 2026. (Id., ¶ 7.)

On May 7, 2026, Plaintiff's counsel advised that the firm intended to withdraw and that Plaintiff would not appear for the May 14 deposition. (Id., ¶ 8.) Defendant thereafter requested alternative dates during the weeks of May 11 and May 18 and advised that it would move to compel if dates were not provided. (Ibid.) Plaintiff's counsel instead requested that the deposition be continued pending withdrawal or substitution of counsel. (Ibid.) This correspondence satisfies the inquiry requirement under section 2025.450, subdivision (b)(2). No valid objection under section 2025.410 or protective order excusing Plaintiff's attendance is shown. The Court notes that Plaintiff subsequently filed a substitution of attorney on August 19, 2026. The anticipated change in representation supplies no continuing basis to postpone the deposition. Plaintiff's stated refusal to proceed with the May 14 deposition, followed by the failure to provide an alternative date, establishes grounds to compel his attendance and testimony.

Production of Documents

A motion to compel production at a deposition must “set forth specific facts showing good cause” for the production sought. (Code Civ. Proc., § 2025.450, subd. (b)(1).) The discovery proponent must identify a disputed fact of consequence and explain how the discovery will tend to prove or disprove that fact or lead to other evidence that will do so. The Court may ascertain the facts of consequence from the pleadings. (Digital Music News LLC v. Superior Court (2014) 226 Cal.App.4th 216, 224, disapproved on other grounds in Williams v. Superior Court (2017) 3 Cal.5th 531, 557, fn. 8.) A separate statement is not required when no response has been provided to the discovery request. (Cal. Rules of Court, rule 3.1345(b)(1).)

Here, no response to the deposition production requests is shown, and a separate statement is not required. Plaintiff alleges that a hazardous condition caused his fall and resulting injuries, medical expenses, emotional distress, and lost earnings. Materials documenting the incident, the alleged condition, the injuries and treatment attributed to the incident, and the resulting damages bear directly on liability, causation, and damages. These facts establish good cause for Request Nos. 1, 3 through 9, 11, 13, and 20 through 23. Request No. 2 is granted only as to medical and hospital bills for treatment of injuries Plaintiff attributes to the incident. Request No. 12 is granted only as to statements concerning the incident or the injuries and damages claimed in this action.

Defendant has not established good cause for the broader historical discovery sought by Request Nos. 10 and 14 through 19. Request No. 10 reaches ten years before the incident without identifying a particular prior condition warranting that period. Request Nos. 14 through 16 are not limited to surgeries, workers' compensation claims, or medical conditions related to the injuries at issue. Request No. 17 seeks deposition transcripts from any prior case without limitation. Request Nos. 18 and 19 seek all materials concerning Social Security disability claims without identifying how the conditions underlying those claims relate to the injuries or damages asserted here. The motion is denied without prejudice as to Request Nos. 10 and 14 through 19.

Monetary Sanctions

If a motion to compel attendance is granted, the court must impose a monetary sanction against the deponent or affiliated party unless the

deponent acted with substantial justification or other circumstances make sanctions unjust. (Code Civ. Proc., § 2025.450, subd. (g)(1).)

Here, Defendant requests \$1,893 in sanctions. Counsel bills at \$235 per hour and claims 3.8 hours preparing the motion, one anticipated hour reviewing an opposition and preparing a reply, three anticipated hours appearing at the hearing, and a \$60 filing fee. (Real Decl., ¶ 10.) The Court finds the \$235 hourly rate reasonable. The 3.8 hours claimed for preparing this motion are excessive given the nature of the motion and the issues presented. The Court allows one hour for preparation. No timely opposition was filed. The Court therefore excludes the anticipated hour for reviewing an opposition and preparing a reply. The Court also finds the three anticipated hours for the hearing excessive and allows one hour. As no opposition was filed, Plaintiff has made no showing of substantial justification or other circumstances making the imposition of sanctions unjust, and none otherwise appears from the record.

Sanctions are awarded against Plaintiff in the reduced amount of \$530, consisting of two hours at \$235 per hour plus the \$60 filing fee.

CONCLUSION

The motion is granted in part. Plaintiff shall appear for deposition within 30 days after service of notice of this ruling. The parties shall meet and confer regarding the date. If they cannot agree, Defendant shall select a date within that period and serve an amended deposition notice stating the date, time, and manner of appearance.

At the deposition, Plaintiff shall produce responsive documents and make responsive tangible items available for inspection under Request Nos. 1, 3 through 9, 11, 13, and 20 through 23 of the April 2, 2026 notice. As to Request No. 2, production is limited to medical and hospital bills for treatment of injuries Plaintiff attributes to the subject incident. As to Request No. 12, production is limited to statements concerning the incident or the injuries and damages claimed in this action. Nothing in this order precludes a timely assertion of privilege or work-product protection at the deposition. The motion is denied without prejudice as to Request Nos. 10 and 14 through 19.

Plaintiff shall pay Defendant \$530 in monetary sanctions

within 30 days after service of notice of this ruling.